

GUIDELINES AND DISCIPLINARY APPEALS POLICY

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Aithent Disciplinary Guidelines and Disciplinary Appeals Policy

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Document Revision History

This section describes the details of changes that have resulted in the document.

Serial No.	Version Number	Date	Sections Affected	Changes in Brief / Remarks
1	1.0	01-07-2019	-----	Initial version
2	2.0	01-07-2020		Reviewed with no changes
3	3.0	01-07-2021		Reviewed with no changes
4	4.0	01-07-2021		Reviewed with no changes
5	5.0	25-03-2023		Reviewed with no changes to main content. Changes made to format, grammar

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POLICY STATEMENT

DISCIPLINARY GUIDELINE STATEMENT:

The guide is a tool to help supervisors evaluate and respond to employee performance problems and workplace issues in a fair and effective manner.

This document provides general guidelines for the proper level of discipline depending on infractions and is to be used to help promote consistency in the level of discipline for similar situations. Specific case information must be considered which may change the recommended level of disciplinary action from what is noted on this matrix.

As a guiding principle, as many day-to-day issues as possible should be resolved on an ongoing informal basis before the disciplinary process is used.

A decision is not made about a disciplinary issue until the disciplinary process is completed as described in this guideline and procedure, and under the 'Domestic Enquiry' guidelines.

This guideline and procedure is not applicable to cases of genuine inability to perform a role.

PROCEDURE

Considerations Prior to Action

- Did the supervisor give the employee a forewarning of the possibility or probability of disciplinary action for the employee's conduct?
- Was the supervisor's rule/expectation reasonably related to the orderly, efficient and safe operation of the establishment?
- Did the supervisor investigate whether the employee violated the rule/order?
  •Was the fact-finding process fair and objective?
- Did the fact finding reveal substantial evidence of proof of violation of the rule/order?
- Has the supervisor applied the rule/expectation and the penalties even handedly to all employees?
- Is the degree of discipline reasonably related to the violation?

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DEFINITIONS

It is not possible to provide a definitive list of circumstances where this guideline and procedure is applicable, but such circumstances include acts of minor misconduct occurring within or outside the workplace, including but not limited to:

- Sub-standard performance (other than through genuine inability to perform a role – see the Performance Improvement Guideline and Procedure) – Refer annexure - 1.
- Unprofessional conduct and behavior
- Not adopting workplace discipline such as not wearing id card, tailgating etc.
- Harassment or victimization
- Misuse of Company facilities, including telephone and computer facilities
- Unauthorized absences and poor time keeping (see the Attendance and Punctuality Guideline and Procedure as well as Leave Guideline and Procedure) – Refer Annexure - 2
- General neglect of duties (including the failure to promptly complete necessary paperwork, e.g., any required timesheet records, Appraisals, performance improvement documentation) and acts of gross misconduct occurring within or outside the workplace, including but not limited to:

Information Security and Data Protection related violations

- Breach of information security and Data Protection pledge
- Theft of personal and sensitive data of customer
- Theft, fraud, or deliberate falsification of records
- Physical violence
- Bullying or harassment, including sexual harassment (refer to the Guideline Against Harassment)

  Refer annexure - 3
- Deliberate damage to property
- Insubordination
- Sexual misconduct

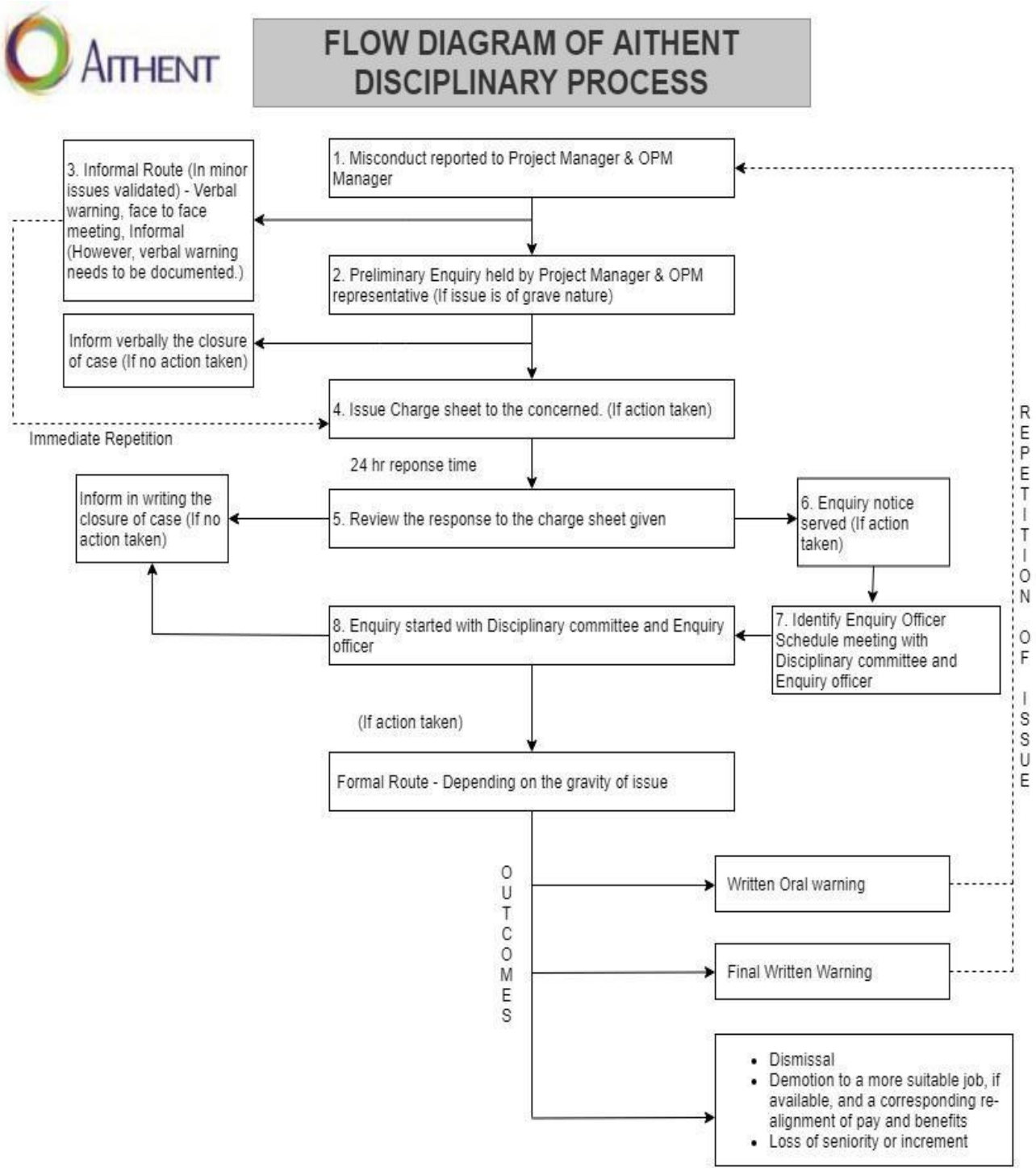
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- Failure to report to work or contact an employee's team leader or supervisor (however, in cases where the employee is incapacitated and unable to contact his or her team leader or supervisor, a two week grace period may be applied before any action is taken provided that the employee produces an explanation satisfactory to his or her team leader or supervisor, explaining why he or she was absent and were unable to contact his or her team leader or supervisor immediately. Application of the two-week grace period is not a right, and the Company's Attendance and Punctuality Guideline and Procedure as well as Leave Guideline and Procedure must be always followed)
- Misuse of the Company's property or name
- Bringing the Company into disrepute
- Serious misuse of Company facilities, including telephone and computer facilities
- Unauthorized consumption or provision of alcohol, or consumption or provision of illegal substances on Company or client premises
- Incapability whilst on duty brought on by alcohol, illegal drugs or other harmful or intoxicating substances.
- Negligence which causes or may cause unacceptable loss, damage or injury willful conduct of any kind which endangers the health and safety of others breach of confidence.
- Failure to cooperate in any search or inspection.
- Improper relationships with government employees and/or officials
- Giving, soliciting, or accepting business courtesies or gifts intended to influence business decisions.

The employee should ensure that he or she is aware of any department specific rules that may apply to him or her. The employee should see his or her supervisor for any clarification.

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FLOW DIAGRAM OF AITHENT DISCIPLINARY PROCESS



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INVESTIGATION

The employee is not issued an informal or formal warning without an investigation into the facts and/or without an acceptable reason, may result in a decision being taken in the employee's absence based on the facts that are known to the Company at that time.

Where a disciplinary matter arises, the following procedure is initiated:

- Misconduct reported to supervisor or the Human Resources Department.
- At any stage of the proceedings, the employee is allowed to produce witnesses on his or her behalf.

The supervisor establishes the facts promptly, by way of a preliminary enquiry, before recollections fade and where appropriate, obtain statements from any available witnesses. The employee also may specify witnesses that he or she believes to be relevant to the investigation. A record of these facts is made by the supervisor and kept for future reference in the employee's personnel record.

The supervisor discusses the facts that are established with the Human Resources Department. The supervisor and Human Resources Department jointly decide whether to drop the matter, arrange for informal coaching/counseling, or arrange for the matter to be further pursued under the disciplinary process.

If the matter requires further investigation, a Charge Sheet/Show cause is sent to the employee detailing the nature of the charge. The employee has reasonable time to respond to the Charge Sheet/Show cause. The Company considers 48 hours a reasonable amount of time to respond. However, in circumstances where this time frame is difficult to meet, and the employee notifies the Company before the 48-hour period, the Company may extend the time to respond at its discretion.

Once the Charge Sheet/Show cause has been completed and returned, the supervisor and the HR Manager review the same and decide if further action is required. If they decide that no further action is required, a letter is sent to the employee to inform him or her of such a decision.

If further action is required, an Enquiry Notice is served on the employee. This explains the process of the next meeting.

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An Enquiry Officer is identified. The Enquiry Officer is a member of staff who is nominated by management and has not been involved in this disciplinary process.

The enquiry includes the employee, the Enquiry Officer and a Disciplinary Authority (a more senior person than the employee subject to the disciplinary process). If the matter is further pursued, a letter is sent to the employee to inform him or her of such a decision. If the matter is further pursued under the disciplinary process, the employee receives either a letter indicating either an informal or formal warning. Formal warnings comprise three stages: 1. written oral warning, 2. Final written warning, and 3. Dismissal.

The disciplinary action procedure has several stages of warning with the next stage being classed as more serious than the previous. The stages are detailed below. The stage at which the hearing is conducted depends on the employee's disciplinary record and the severity of the issue(s) raised against him or her. For example, it is possible to issue a final written warning for a serious incident without the individual having an existing disciplinary record. Equally, an incident may warrant skipping a stage, i.e., moving straight from an oral warning to dismissal.

It is possible to have more than one warning at the same stage if such warnings are for incidents of a different and unrelated nature. However, repeated misconduct of the same nature may lead to the procedure working sequentially through the stages set out below from informal warning to dismissal.

The employee should seek advice from his or her HR Manager if the employee requires further clarification.

INFORMAL WARNING

Minor misconduct results in an informal warning being given by the employee's supervisor. The issue is discussed with the objective of encouraging and helping the employee improve over a specified period. This generally takes the form of a face-to-face meeting between the Line Manger and the employee. Failure to improve and maintain that improvement leads to the following formal steps. An informal warning needs to be documented for the employees' personnel records, however.

FORMAL WARNING

The employee is invited to attend a disciplinary hearing by the supervisor and appropriate HR representative.
The disciplinary hearing allows the employee to state his or her case and answer any allegations made. The disciplinary hearing is conducted by the Disciplinary Authority and the Enquiry Officer. If a decision is reached to take disciplinary action, the employee is told of the decision after the disciplinary hearing and later given a letter of confirmation that sets out the warning to be issued. The warning is either a formal oral warning or a final written warning.

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Stage 1 – Oral/Verbal Warning

An oral warning is issued for minor misconduct. The letter of confirmation states the reason for the warning and confirms the employee's involvement in the disciplinary process and his or her right of appeal. A note of the warning is kept in the employee's personnel record.

Stage 2 – Final Written Warning

A final written warning may be issued instead of an oral warning for more serious offences or if a further offence occurs within the currency of a prior oral warning. The final written warning states:

- The issue that has caused the warning.
- The action required to remedy the situation, along with associated time frame.
- That failure to improve or modify behavior may lead to dismissal or some other action short of dismissal.
- The employee's right of appeal
- A copy of the warning is kept in the employee's personnel record.

Stage 3 – Dismissal

The final decision to dismiss can only be taken by the Disciplinary Authority independently after following the disciplinary process as stated above.

Alternatives short of dismissal may also be considered by the Disciplinary Authority, including:

- Demotion to a more suitable job, if available, and a corresponding re-alignment of pay and benefits
- Loss of seniority or increment

The decision is confirmed in writing. Generally, dismissal is in accordance with the employee's contractual or legal notice period and pay. However, dismissal on the grounds of gross misconduct is without notice or pay in lieu of notice.

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SUSPENSION

The employee may be suspended on full pay while the circumstances of potential misconduct are being investigated. Generally, the employee is suspended while the circumstances of potential gross misconduct are investigated. Suspension is not considered a disciplinary action per se.

EFFECT ON BENEFITS AND INTERNAL TRANSFERS

The issuance of any formal warning renders an employee ineligible for any potential Annual Salary Review if the warning, whether oral or final written, is given at any point up to the transmission of the payment. More specific guidelines are written in the rules of such schemes.

While an employee is subject to the disciplinary process, the employee is not eligible to apply for any internal transfers or secondments until such process has concluded. This includes any specified period for performance improvement review. The disciplinary process ends only after the performance improvement review period has ended and the employee achieves all requirements of the performance improvement review period.

RECORDS

All records are kept in the strictest confidence and retained on file.

DISCIPLINARY APPEALS GUIDELINE STATEMENT

Appeals can be made by an employee who has received a formal warning or has been dismissed in accordance with the Company's disciplinary process. Appeals cannot be made by employees who have received informal warnings only.

The appeal hearing is not intended to repeat the details of the original disciplinary process, but to focus on aspects that are believed to have received insufficient consideration.

The person hearing the appeal has the authority to reduce or overturn disciplinary penalties, if appropriate.

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PROCEDURE (DISCIPLINARY APPEALS):

Initiating the Appeal

An employee sends his or her letter of appeal to the Human Resources Department. This must be done within 4 days of the employee's receipt of the letter confirming the warning or his or her dismissal. The letter of appeal should state the ground(s) on which the appeal is being made.

In order to increase objectivity, the person hearing the appeal, the "Appeals Manager", is briefed by the Human Resources Department. The supervisor involved in the original disciplinary process does not discuss the case in advance of the appeal hearing with the Appeals Manager.

NOTE: The Appeals Manager will be a manager who was not involved in the original disciplinary process and will likely be not directly associated to either the employee's immediate supervisor or the supervisor's manager. The Appeals Manager will be more senior to your supervisor. The Appeals Manager will be from a different department than the employee, to further maximize his or her objectivity. The Appeals Manager will be more senior in grade than the original disciplining supervisor.

The appeal is heard within 5 working days of receipt of the letter of appeal from the employee. It is conducted by the Appeals Manager and an HR Manager not previously involved in the original disciplinary process.

The HR Manager invites the employees to attend the appeal hearing. The HR Manager keeps a record of proceedings. This may or may not involve an additional attendee at the meeting.

During the Appeal

The employee can state the grounds on which the appeal is made. If there is any new evidence introduced at this stage, the employee can comment on it.

The manager involved in the original disciplinary process also provides an explanation of his or her decision to impose the given penalty.

In advance of the hearing, the Appeals Manager exercises discretion as to whether the two parties are present together at the hearing.

After the Appeal

Upon the conclusion of the appeal hearing, the Appeals Manager considers the evidence and decides. The Appeals Manager ensures that the principles of fairness and reasonableness are applied; particularly in any cases in which time frames are relevant (i.e., performance-related issues). Performance related issues are addressed through the

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Performance Improvement Guideline which elaborates the targets of performance, current achievement, and measures of success with specified timelines.
The Appeals Manager's decision is confirmed in writing within 5 days of the hearing, although the employee can normally expect to verbally learn of this decision as soon as it is made. The decision of the Appeals Manager is final and binding on all parties.

If the employee's appeal fails, the original decision stands and is effective from the original date of the decision. If the appeal upholds the original decision to dismiss the employee, then the effective date of his or her termination of employment is the date on which the appeals decision is communicated.

Records

All records are kept in the strictest confidence and retained on file.

Contacts:

For further information or queries on these guidelines and procedure, please contact the Human Resources Department.

FAQ's

Q1. What is the aim and objective of the Disciplinary and Disciplinary Appeals Guideline?

High standards of conduct and performance are expected of all individuals who work for the Company. As such, this guideline and procedure exists to ensure fairness and consistency in the treatment of all individuals who do not meet these standards.

Q2. Under what circumstances is the Disciplinary and Disciplinary Appeals Guideline applicable?

It is not possible to provide a definitive list of circumstances where this guideline and procedure is applicable, but such circumstances include acts of minor misconduct occurring within or outside the workplace, including but not limited to:

- Sub-standard performance (other than through genuine inability to perform a role – see the Performance Improvement Guideline and Procedure)
- Unprofessional conduct and behavior
- Harassment or victimization
- Misuse of Company facilities, including telephone and computer facilities
- Unauthorized absences and poor time keeping (see the Attendance and Punctuality Guideline and Procedure as well as Leave Guideline and Procedure)

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- General neglect of duties (including the failure to promptly complete necessary paperwork, e.g., any required timesheet records, performance development documentation)
- Process related violations and acts of gross misconduct occurring within or outside the workplace, including but not limited to:
- Theft, fraud or deliberate falsification of records
- Physical violence
- Bullying or harassment, including sexual harassment (refer to the Guideline Against Harassment)
- Deliberate damage to property
- Insubordination
- Sexual misconduct
- failure to report to work or contact an employee's team leader or supervisor (however, in cases where the employee is incapacitated and unable to contact his or her team leader or supervisor, a two week grace period may be applied before any action is taken provided that the employee produces an explanation satisfactory to his or her team leader or supervisor, explaining why he or she was absent and were unable to contact his or her team leader or supervisor immediately. Application of the two-week grace period is not a right, and the Company's Attendance and Punctuality Guideline and Procedure as well as Leave Guideline and Procedure must be followed at all times)
- Misuse of the Company's property or name
- Bringing the Company into disrepute
- Serious misuse of Company facilities, including telephone and computer facilities
- Unauthorized consumption or provision of alcohol, or consumption or provision of illegal substances on Company or client premises
- Incapability whilst on duty brought on by alcohol, illegal drugs or other harmful or intoxicating substances negligence which causes or may cause unacceptable loss, damage or injury.
- Willful conduct of any kind which endangers the health and safety of others.
- Breach of confidence

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- Failure to cooperate in any search or inspection.
- Improper relationships with government employees and/or officials
- Giving, soliciting or accepting business courtesies or gifts intended to influence business decisions.

The employee should ensure that he or she is aware of any department specific rules that may apply to him or her. The employee should see his or her supervisor for any clarification.

Q3. Under what circumstances are Informal Warnings given to an employee?

Minor misconduct results in an informal warning being given by the employee's supervisor. The issue is discussed with the objective of encouraging and helping the employee improve over a specified period of time. This generally takes the form of a face-to-face meeting between the Line Manger and the employee. Failure to improve and maintain that improvement leads to the following formal steps. An informal warning needs to be documented for the employees' personnel records, however.

Q4. In the Formal Warning Stage, what is the difference between, Oral/ Verbal/Final Warning and Dismissal

Oral/Verbal Warning

An oral warning is issued for minor misconduct. The letter of confirmation states the reason for the warning and confirms the employee's involvement in the disciplinary process and his or her right of appeal. A note of the warning is kept in the employee's personnel record.

Final Written Warning

A final written warning may be issued instead of an oral warning for more serious offences or if a further offence occurs within the currency of a prior oral warning. The final written warning states:

- The issue that has caused the warning.
- The action required to remedy the situation, along with associated time frame.
- That failure to improve or modify behavior may lead to dismissal or some other action short of dismissal.
- The employee's right of appeal
- A copy of the warning is kept in the employee's personnel record.
- Dismissal

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- The final decision to dismiss can only be taken by the Disciplinary Authority independently after following the disciplinary process as stated above.
- Alternatives short of dismissal may also be considered by the Disciplinary Authority, including demotion to a more suitable job, if available, and a corresponding re-alignment of pay and benefits, loss of seniority or increment

Q5. Is suspension a Disciplinary Process?

The employee may be suspended on full pay while the circumstances of potential misconduct are being investigated. Generally, the employee is suspended while the circumstances of potential gross misconduct are investigated. Suspension is not considered a disciplinary action per se.

Q6 Can appeals be made by an employee who has received a formal warning or has been dismissed?

Appeals can be made by an employee who has received a formal warning or has been dismissed in accordance with the Company's disciplinary process. Appeals cannot be made by employees who have received informal warnings only. The appeal hearing is not intended to repeat the details of the original disciplinary process, but to focus on aspects that are believed to have received insufficient consideration.

The person hearing the appeal has the authority to reduce or overturn disciplinary penalties, if appropriate.

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Annexures 1 :

Performance Improvement Guideline and Procedure

Supervisors and employees are strongly encouraged to discuss job performance and goals on an informal, day-to-day basis. A formal written performance evaluation will be conducted at the end of an employee's one year. This will provide both supervisors and employees the opportunity to discuss job tasks, identify and correct weaknesses, encourage and recognize strengths, and discuss positive, purposeful approaches for meeting goals. The performance will be done on the basis of goals mentioned in the work plan. Every employee has to fill his work plan for the next year along with the performance evaluation form.

In case of poor performance, HR and reporting manager will let the employee know on what areas the person has to enhance his level of performance. In case of an employee' professional incompetence and/or inadequate work behavior, a written show cause notice will be issued to employee. If the performance is still found unsatisfactory, a final notice will be issued to employee for termination.

Annexure 2 :

Unauthorized absence, Attendance and Punctuality

To maintain discipline and productive work environment, we expect employees to be reliable and be punctual in reporting for scheduled work. Unauthorized absenteeism (It is when an employee abstains from duty without the required prior permission of his/her immediate supervisor (reported/unreported) and/or without proper justification) and tardiness place a burden on other employees and on Aithent. In the rare instances when employees cannot avoid being late to work or are unable to work as scheduled, they should notify their reporting officer/HR as soon as possible in advance of the anticipated tardiness or absence.

Poor attendance, unauthorized leaves and excessive tardiness are disruptive. Either may lead to disciplinary action which may lead to termination of employment.

For Leave Guideline and Procedure please refer the existing Leave Policy

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Annexure 3:

Sexual and other unlawful harassment

All employees should respect their colleagues. We won't allow any kind of discriminatory behavior, harassment or victimization. Aithent is committed to providing a work environment that is free of discrimination and unlawful harassment. Actions, words, bullying, jokes, or comments based on an individual's sex, caste, race, ethnicity, age, religion, or any other characteristic will not be tolerated. As an example, sexual harassment (both overt and subtle) is a form of employee misconduct that is demeaning to another person, undermines the integrity of the employment relationship, and is strictly prohibited.

Any employee who wants to report an incident of sexual or other unlawful harassment should promptly report the matter to his or her supervisor, HR, or any member of management. Employees can raise concerns and make reports without fear of reprisal. Any supervisor or manager who becomes aware of possible sexual or other unlawful harassment should promptly advise HR or any member of management who will handle the matter in a timely and confidential manner.

Anyone engaging in sexual or other unlawful harassment will be subject to disciplinary action, which may lead to termination of employment.

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